

First Statutes of the Al-Karim University, Katihar, 2019

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State of Bihar - Act

First Statutes of the Al-Karim University, Katihar, 2019

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First Statutes of the Al-Karim University, Katihar, 2019

Rule FIRST-STATUTES-OF-THE-AL-KARIM-UNIVERSITY-KATIHAR-2019 of 2019

Published on 18 May 2019

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First Statutes of the Al-Karim University, Katihar, 2019

Published vide Notification No. 15/M 1-44/2015-1118, dated 18.5.2019

Last Updated 10th February, 2020

No. 15/M 1-44/2015-1118. - Under the provisions of section 30 of Bihar Private Universities Act 2013 the State Government has been pleased to approve the following first statute for Al-Karim University, Katihar established vide State Government notification no. 1065 dated 15.06.2018.

Chapter - 1 Preliminary

1.

Short title and commencement.

- 1.1.1. These Statutes may be called the First Statutes of the Al-Karim University, Katihar, 2019.

1.1.2

. They shall come into force from the date of approval by the State Government.

1.2

Definition. - In these Statutes, unless the context otherwise requires;

1.

2.

a. "Act" means the Bihar Private Universities Act, 2013 (Act No. 20 of 2013)

1.

2.

b. "State Government" means the Government of Bihar.

1.

2.

c. "Sponsoring Authority" means Al-Karim Educational Trust, a Society registered under the Societies Registration Act, 1860 of the members of Muslim minority community.

1.

2.

d. "University" means Al-Karim University established and incorporated under the Bihar Private Universities Act, 2013 in exercise of right under Article 30(1) of the Constitution of India.

1.

2.

e. "Authorities of the University" means authorities specified in Section 21 of the Bihar Private Universities Act, 2013 (in short Act) and includes authorities declared by these Statutes.

1.

2.

f. "Professor" means a teacher of a school/department/faculty possessing such qualifications as may be prescribed by the Statutes or the Regulation of the apex body of the concerned technical and professional field.

1.

2.

g. "Associate Professor" means a teacher of a school/ department/ faculty or the University possessing such qualifications as may be prescribed by the Statutes or the Regulation of the apex body of the concerned technical and professional field.

1.

2.

h. "Assistant Professor" means a teacher of a school/ department/ faculty or the University possessing such qualifications as may be prescribed by the Statutes or the Regulation of the expert or technical body of the concerned technical and professional field.

1.

2.

i. "University Student" means a person enrolled in Al-Karim University, Katihar for the purpose of entry in any course of study for acquiring any degree, diploma or other academic distinctions.

1.

2.

j. "Dean of students' welfare" means the officer appointed under Sub-Section VI of Section 14 of the Act.

1.

2.

k. "Proctor" means the officer appointed under Sub-Section VI of Section 14 of the Act.

1.

2.

l. "Director/Principal" means head of the institute.

1.

2.

m. "MCI" means Medical Council of India established under Indian Medical Council Act, 1956 as amended till date.

- 1.
- 2.
- n. "AICTE" means All India Council of Technical Education established under All India Council of Technical Education Act, 1987.
- 1.
- 2.
- o. "NCTE" means the National Council for Teacher Education, New Delhi established under National Council Teacher Education Act, 1993.
- 1.
- 2.
- p. "Bar Council of India" means a statutory body constituted under the Advocates Act, 1961.
- 1.
- 2.
- q. "Hostel" means a place of residence for students of the University maintained or recognized by the University.
- 1.
- 2.
- r. "School" means different disciplines/teaching centers/ departments/ institutions of the University under a faculty.
- 1.
- 2.
- s. "Faculty" means a group of University departments/Schools concerned with the major division of knowledge.

Chapter - 2

2. List of Officers.

- 2.1.1. Officer of the University:- The following shall be the officers of the University, namely:-

2.1.1

.(i) The Visitor

2.1.1

.(ii) The Chancellor

2.1.1

.(iii) The Vice-Chancellor

2.1.1

.(iv) The Registrar

2.1.1

.(v) The Chief Finance and Accounts Officer

2.1.1

.(vi) The Dean of Students' Welfare

2.1.1

.(vii) Proctor

2.1.1

.(viii) The Controller of Examination

2.1.1

.(ix) Deputy Registrar I

2.1.1

.(x) Deputy Registrar II

2.1.1

.(xi) Development Officer

2.1.1

.(xii) Law Officer

2.1.1

.(xiii) Estate Officer

2.1.1

.(xiv) NSS Officer

2.1.1

.(xv) Sports Officer

2.1.1

.(xvi) Such other officers as may be declared by the Statutes to be the officers of the University.

2.2

Manner of appointments, powers and functions of the University officers. - 2.2.1. The Visitor:

2.2.2

. Appointment of the Visitor. - 2.2.2.1 An academician of eminence or person having long standing experience in administration or social work of recognition may be visitor of the University. The Visitor shall be appointed by the Sponsoring Body for a period of three years and after expiry of the term he will be eligible to be reappointed. However, the Sponsoring Body, by majority vote, may decide to remove him before expiry of term if the contingency so arises.

2.2.2.2

The Visitor shall, when present, preside at the convocation of the University for conferring degrees and diplomas.

2.3

The Chancellor. - 2.3.1 Appointment of the Chancellor. - The Chancellor of the University shall be appointed by the Sponsoring Body for a period of three years with the approval of the Visitor in accordance with the provisions of Section 16 of the Act and after expiry of the term he shall be eligible to be re-appointed. However, the Sponsoring Body, by majority vote, may decide to remove him before expiry of term if the contingency so arises.

2.3.2

. Powers and functions of the Chancellor. - The Chancellor shall have the following powers:-

2.3.2

.a. The Chancellor shall be the head of the University.

2.3.2

.b. The Chancellor shall preside over the meetings of the Governing Body and shall, when the Visitor is not present, preside at the convocation of the University for conferring degrees, diplomas or other academic distinctions.

2.3.2

.c The Chancellor shall have the following powers, namely:-

2.3.2

.c.i. to call for any information or record;

2.3.2

.c.ii. to appoint the Vice-Chancellor;

2.3.2

.d. to remove the Vice-Chancellor in accordance with the provisions of sub-section (7) of section 17 of the Act;

2.3.2

.e The Chancellor shall perform his duties in an honorary capacity. However, he may be paid such honorarium not less than the salary of the Vice- Chancellor.

2.3.2

.f The Chancellor shall be provided with an official rent free residence which shall be fully furnished with water, electricity and telephone as per preference of the Chancellor.

2.3.2

.g. He shall be provided with chauffer driven car with fuel for his use.

2.3.2

.h. He shall be entitled to travelling and halting allowances as per bill submitted by him.

2.3.2

.i. The Chancellor shall have all such powers and functions as may be inherent in him by virtue of his being the head of the University or such other powers and functions as may be assigned to him by the Governing Body from time to time.

2.3.2

.j. In addition to the powers conferred under the Act and the power provided herein above the Chancellor shall have the powers:

2.3.2

.j.(i). To establish norms relating to consultancy undertaken by or within the University in any field of expertise:

2.3.2

.j.(ii). To establish and administer centers of the University or programmes of study of the University, both inside and outside the State of Bihar and country subject to relevant laws;

2.3.2

.j.(iii). To establish and administer distance education programmes in the State of Bihar;

2.3.2

.j. (iv). To enter into collaboration/agreements with other Universities, including foreign universities, and/or educational institutions to augment the activities of the University, including (without limitation) programmes of exchange of students and teachers, sharing of credits, and holding of joint workshops and programmes of joint research, facilitation of access to each others facilities and to institute double/triple/jointly-organized academic degrees under such agreements as per the standards recognized by the regulatory bodies in India;

Provided that all decisions taken as per sub-clause 2.3.2.j.(i). to 2.3.2.j. (iv) will be ratified by the Governing Body.

2.3.2

.j.(v). When any exigencies arise, and the Chancellor is of the opinion that it is not possible or convenient, under the circumstances, to convene a meeting of the Governing Body at short notice, he may take any appropriate decision or action as he may deem fit and necessary in the best interests of the University.

2.3.2

.j.(vi). In pursuance of any decisions or actions specified in clause 2.3.2.j.(v), or for purposes of immediate implementation thereof, the Chancellor shall have full powers to issue any order or instruction to all or any of the authorities, officers, teachers, other academic staff, other employees, ministerial staff, and/or students of the University and such authority, officer, teacher, other academic staff, employee, ministerial staff, and/or students shall be bound to comply with such order or instructions forthwith. The Chancellor may, at any time, amend or revoke any order or instructions issued by him.

2.3.2

.j.(vii). The Chancellor shall, as soon as practicable, convene an emergency meeting of the Governing Body and submit detailed report on the action taken under clause 2.3.2.j.(v).

2.3.2

.j.(viii). The Chancellor shall furnish the Governing Body such further information as the Governing Body may call for upon receipt of his report under clause 2.3.2.j.(vii).

2.3.2

.j.(ix). The Chancellor shall report all actions taken by him pursuant to clause 2.3.2.j.(v) and 2.3.2.j.(vii) to the Governing Body for ratification.

2.3.2

.j.(x). Upon ratification by the Governing Body, any or all the actions /decisions taken by the Chancellor in exercise of his/her powers under clause 2.3.2.j.(vi) shall not be invalid for want of consultation/approval/ratification of Authorities of the University.

2.3.2

.j.(xi). The Chancellor shall be the Chairperson of the Finance Committee.

2.3.2

.j.(xii). The Chancellor shall appoint the Vice-Chancellor and Registrar and any other officer/authority in the University which he deems proper as per provisions of the Act.

2.3.2

.j.(xiii). If the Chancellor is satisfied, on an inquiry made or caused to be made on representation made to him or otherwise that the continuance of the Vice-Chancellor/Proctor/Director/Controller of Examinations/ Registrar or any other designated officer in the University is prejudicial to the interest of the university or the situation so warrants, he may, by an order in writing and stating the reasons therein for doing so, ask the Vice- Chancellor/Registrar/Chief Finance Officer/ Dean/ Proctor/Director/Controller of Examinations/ or any other designated officer to relinquish his office from such date as may be specified in the order;

Provided that before taking such action under this sub-clause, such officer shall be given an opportunity of being heard.

2.3.2

.j.(xiv). The Chancellor shall have the power to terminate/ remove any teacher/employee of University on the ground of

misconduct, inefficiency, financial irregularity or any other reason as may be considered not in the interest of the University;

Provided that before taking an action under this sub-clause, such teacher/employee shall be given an opportunity of being heard.

2.3.2

.j.(xv). Chancellor in the interest of the University may nominate/appoint any distinguished person on any committee/ authority or as Guest Teacher/ Principal/ Director of the University.

2.3.2

.j.(xvi).The Chancellor may appoint Professors of Eminence and such other distinguished categories of Senior Fellows, Special Fellows, Adjunct Professors, Visiting Professors and Visiting Instructors and lay down criteria and terms and conditions of their services.

2.3.2

.j.(xvii).In case of urgency, the Chancellor may confer an honorary degree to a distinguished person(s).

2.3.2

.j.(xviii).In the interest of University the Chancellor may appoint/engage any suitable person as adviser such as, academic adviser, technical adviser or legal adviser on remuneration as the Chancellor may deem fit and proper.

2.3.2

.j.(xix). The Chancellor may take any such action in the interest of University which he may deem fit and proper.

2.3.2

.j.(xx). It shall be the duty of the Chancellor to see that the Act, Statutes, Ordinances and Regulations are duly observed, and he shall have all powers necessary to ensure such observance.

2.4

The Vice-Chancellor. - 2.4.1. Appointment of Vice-Chancellor:

2.4.1.1

The Vice-Chancellor shall be appointed in accordance with section 17 of the Act by the Chancellor from a panel of three persons recommended by the Governing Body and shall hold office for three years.

Provided that, after expiry of the term of three years, a person shall be eligible for reappointment for another term of three years.

Provided further that a Vice-Chancellor shall continue to hold the office even after expiry of his term till new Vice-Chancellor joins. However, in any case this period shall not exceed one year after re-appointment.

2.4.1.2

. Only a distinguished scholar or a person with substantial experience in academic or administration shall be appointed as Vice- Chancellor. The Vice-Chancellor shall be entitled to receive the basic pay and all other entitlements and privileges as specified herein in clause 2.4.1.4 to 2.4.1.9.

2.4.1.3

. Whenever the office of the Vice-Chancellor falls vacant for any reason other than the expiry of the term of appointment, the Chancellor may, in the interest of the University, assign the responsibilities of the Vice-Chancellor to the another senior most Dean/Professor until a suitable person is appointed and the Vice- Chancellor assumes office as such.

2.4.1.4

. The Vice-Chancellor shall be paid such salary as may be determined by the University Grants Commission from time to time unless otherwise mentioned by the University in the advertisement/ appointment letter.

2.4.1.5

. He shall be provided with an official rent free residence which shall be fully furnished/ unfurnished as per the preference of the Vice- Chancellor. The term "fully furnished" includes essential furniture commensurate with the status of a Vice-Chancellor including electricity, water and telephone free of charges as may be prescribed by the University.

2.4.1.6

. He shall be provided with an official car for his official use.

2.4.1.7

. He shall be entitled to the benefits of Leave, Medical and other benefits according to the University Regulations for the time being in force.

2.4.1.8

. He shall be entitled to the travelling or halting allowance as may be prescribed by the University from time to time.

2.4.1.9

. He shall be entitled to such other allowances and facilities as defined in the University Regulations from time to time.

2.4.1.10

. The Vice-Chancellor may by writing under his signature addressed to the Chancellor, resign from his office by giving notice of three months.

2.4.2

. Power and functions of the Vice-Chancellor. - 2.4.2.1 The Vice-Chancellor shall be the principal executive and academic officer of the University and shall exercise general superintendence and control over the affairs of the University and shall execute the decisions of various authorities of the University.

2.4.2.2

The Vice-Chancellor shall preside at the convocation of the University in the absence of both the Visitor and the Chancellor.

2.4.2.3

If in the opinion of the Vice-Chancellor it is necessary to take immediate action on any matter for which powers are conferred on any other officer or authority by or under this Act, he may take such action as he deems necessary and shall at the earliest opportunity thereafter report his action to such officer or authority as would have in the ordinary course dealt with the matter.

Provided that if in the opinion of the concerned officer or authority such action should not have been taken by the Vice-Chancellor then such case shall be referred to the Chancellor, whose decision thereon shall be final.

Provided further that where any such action taken by the Vice-Chancellor affects any person in the service of the University, such person shall be entitled to prefer, within three months from the date on which such action is communicated to him, an appeal to the Board of Management and the Board of Management may confirm or modify or reverse the action taken by the Vice-Chancellor.

2.4.2.4

If, in the opinion of the Vice-Chancellor, any decision of any authority of the University is outside the powers conferred by this Act or Statutes, Ordinances, Regulations or rules made there under or is likely to be prejudicial to the interests of the University, he shall request the concerned authority to revise its decision within fifteen days from the date of its decision and in case the authority refuses to revise such decision wholly or partly or fails to take any decision within fifteen days, then such matter shall be referred to the Chancellor and his decision thereon shall be final.

2.4.2.5

The Vice-Chancellor shall exercise such powers and perform such duties as may be prescribed by the Statutes or the Ordinances.

2.4.2.6

If, at any time upon representation made or otherwise and after making such inquiry as may be deemed necessary, the situation so warrants and if the continuation of the Vice-Chancellor is not in the interests of the University, the Chancellor may, by an order in writing stating the reasons therein, ask the Vice-Chancellor to relinquish the office from such date as may be specified in the order.

Provided that before taking an action under this sub-section, the Vice-Chancellor shall be given an opportunity of being heard.

2.4.2.7

.(a). The Vice-Chancellor shall be the Ex-Officio Chairperson of the Academic Council and Committee for Advance Studies and Research. He may be present at, and to address, any meeting of any authority or other body of the University, but he shall not be entitled to vote unless he is a member of such authority or body.

2.4.2.7

.(b). It shall be the duty of the Vice-Chancellor to see that the Act, Statutes, Ordinances and Regulations are duly observed, and he shall have all powers necessary to ensure such observance.

2.4.2.7

.(c). The Vice-Chancellor shall have the power to convene or cause to be convened meetings of the Academic Council.

2.4.2.7

.(d). The Vice-Chancellor shall have the power to terminate/remove any teacher/employee of University on the ground of

misconduct, inefficiency, financial irregularity or any other reason as may be considered not in the interest of the University, Provided that before taking an action under this clause, such teacher/employee shall be given an opportunity of being heard.

2.4.2.7

.(e). The Vice-Chancellor may take any such action in the interest of University which he deems fit with the consent of the Chancellor.

2.4.2.7

.(f). The Vice-Chancellor shall have the overall supervision and control over all the activities of the University, and shall exercise powers and perform functions on all matters incidental thereto. These powers and functions shall, in appropriate cases, include the following, namely.

2.4.2.7

.(g). To investigate into any incident involving a member of the University including student;

2.4.2.7

.(h). To institute/authorize institution of inquiries into incidents, situations or affairs of the University;

2.4.2.7

.(i). To call for explanation from any officer, teacher, member of ministerial staff, or student of the University;

2.4.2.7

.(j). To give directions to any student, teacher, officer, or any other employee of the University;

2.4.2.7

.(k). To require reports from all bodies/committees/ councils/boards of the University constituted under these Statutes, with the exception of the Governing Body;

2.4.2.7

.(l). To establish and review, from time to time, the disciplinary jurisdiction and control of the Office of the Vice-Chancellor over all students and all employees and the procedure(s) for exercise of disciplinary powers by designated officers, and to take all measures necessary in this connections, including designation and empowerment of one or more functionaries, in consultation with the Chancellor;

2.4.2.7

.(m). To develop plan and schemes aimed at ensuring excellence in the standards of academic activities of the various academic bodies in the University.

2.4.2.7

.(n). To recommend to the Chancellor on all matters relating to holding of any annual and special convocation, or special meeting in honour of any distinguished individual or for commemoration of any event;

2.4.2.7

.(o). To make proposals for Governing Body in respect of the University activities, and powers and functions of all bodies, officers, teachers and other employees of the University , and

2.4.2.7

.(p). To take all measures necessary and convenient to give effect to the foregoing powers and functions, in consultation with the Chancellor.

2.4.2.7

.(q). On administrative matters, and on matters of academic affairs that require consultation with or decision by the Governing Body, the Vice- Chancellor shall act, after consultation with the Chancellor.

2.4.2.7

.(r). The Vice-Chancellor shall oversee and monitor officer's and staff; the working, performance and administration of the departments; instructions of specialized studies, laboratories, library, museums and schools/Faculty maintained by the University.

2.5

The Registrar. - 2.5.1. Appointment and Removal:

2.5.1

.(i). The Registrar shall be a whole-time salaried employee of the University and shall be appointed by the Chairperson of the Sponsoring Body on the recommendations of the selection committee constituted for the purpose. He must have qualifications prescribed by the University Governing Body. He shall be paid the grade of pay fixed by the University

Grants Commission unless otherwise mentioned by the University in the advertisement/appointment letter. A rent-free accommodation and other facilities necessary, for performance of his functions shall be provided to him.

2.5.1

. (ii). When the office of the Registrar is vacant or when the Registrar is, by reason of illness, absence or any other cause, unable to perform the functions of his office, the functions of the office shall be performed by such person as the Chancellor may appoint for the purpose.

2.5.1

.(iii). The Chancellor, on his own or on the recommendations of Vice-Chancellor can ask the Registrar to relinquish his office or terminate his services

2.5.1

. (iv). If the Chancellor is satisfied, on any enquiry made or caused to be made on a representation made to him or otherwise, that the continuance of the Registrar in his office is prejudicial to the interest of the University or the situation so warrants, he may, by an order in writing and stating the reasons therein for doing so, ask the Registrar to relinquish his office from such date as may be specified in the order.

Provided that before taking an action, the Registrar shall be given an opportunity of being heard.

2.5.1

. (v). The registrar shall work under control, direction and superintendence of the Vice-Chancellor.

2.5.1

.(vi). The Registrar may by writing under his signature addressed to the Chancellor/Vice-Chancellor, resign from his office by giving three month notice.

2.5.2

. Powers and functions of the Registrar. - The Registrar shall:-

2.5.2

.a. Be custodian of the records, the common seal and such other movable and immovable properties of the University as the Governing Body shall commit to his charge.

2.5.2

.b. Issue all notices convening meetings of the Board of Management, Academic Council and of any committees appointed by the authorities of the University, and to make all correspondences on behalf of the University

2.5.2

.c. Arrange for secretarial and other administrative assistance to all University bodies established under the Act and these Statutes. He/she shall prepare draft minutes of meetings of those bodies and submit them to the Vice-Chancellor for approval and thereafter circulate them among the members of the respective bodies.

2.5.2

.d. Keep the minutes of all the meetings of the Board of Management and Academic Council and of any committee appointed by the authorities of the University.

2.5.2

.e. Conduct the official correspondence of the Board of Management and Academic Council

2.5.2

.f. Render all assistance to Proctor in management of the affairs of the general administration, hostel administration, and students' affairs under the direction of the Vice-Chancellor.

2.5.2

.g. Where the inquiry discloses that a punishment may be beyond the powers of the Registrar, he shall, upon conclusion of such inquiry, make a report to Vice-Chancellor along with his recommendations.

2.5.2

.h. Upon the direction or with the prior approval of the Chancellor/Governing Body, initiate any legal proceeding on behalf of the University or take all necessary action to protect the interests of the University in any legal proceeding initiated by or on behalf of the University as well as in any legal proceeding initiated against the University

2.5.2

.i. Represent the University before any Tribunal, Court of law or authority in all proceeding instituted on behalf or against the University

2.5.2

.j. On the direction or with the prior approval of the Chancellor sign, verify and file all necessary papers and pleadings before concerning Court/ Tribunal/Authority/Arbitrator etc., coordinate with Advocates or other legal consultation and when necessary, represent and/or appear before any Court, Tribunal, Arbitrator or Government Authorities on behalf of the University to give evidence on oath or otherwise and do all acts, deeds, things as may be necessary as per legal advice to prosecute or defend the matter to protect the interest of the University and report to the Vice-Chancellor and Chancellor.

2.5.2

.k. On the direction, or, with prior approval of the Chancellor appoint/authorize any officer who may be given special charge of all or any matters referred to under this clause and/or who may be authorized by the Chancellor to perform all such action as the Registrar may himself be authorized to perform.

2.5.2

.l. Perform such other functions as may be required, from time to time, by the Governing Body, Chancellor or the Vice-Chancellor.

2.5.2

.m. Subject to foregoing clauses of these Statutes, the Registrar shall be the operational head of University administration, and

2.5.2

.n. Have power to take disciplinary action against such employees of the University as may be specified in the orders of the Governing Body/Chancellor/Vice-Chancellor and to suspend them pending inquiry, to administer warning to them or to impose on them the penalty of censure or withholding of increment.

Provided that no such penalty shall be imposed unless the person concerned has been given reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

2.5.2

.o. Shall be the Member Secretary of all Bodies/ Committees where no such Member Secretary is specifically provided. However, he shall not have right to vote unless specifically provided in the constitution of respective Bodies/Committees.

2.5.3

. Appeal. - An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the Penalties specified in clause 2.5.2.n. of Statute.

2.6

Chief Finance and Accounts Officer. - 2.6.1. Appointment of Chief Finance and Accounts Officer:

2.6.1

.(i). The Chief Finance and Accounts Officer shall be appointed by the Chancellor on the recommendation of the Committee referred to in sub-clause 2.6.1.(ii).

2.6.1

.(ii). The selection of Chief Finance and Accounts Officer shall be made by the Selection Committee constituted by the Chancellor consisting of the Vice-Chancellor, a nominee of the Chancellor, and two eminent personalities nominated by the Chancellor. A person to be appointed as Chief Finance and Accounts Officer shall be qualified and experienced in institutional financial and accounting affairs.

2.6.1

.(iii). The qualification and grade of pay for the post of the Chief Finance and Accounts Officer shall be such as specified in the guidelines issued by the University Grants Commission from time to time unless otherwise mentioned by the University in the advertisement/appointment letter.

2.6.1

.(iv). When the office of the Chief Finance and Accounts Officer is vacant or when the Chief Finance and Accounts Officer is, by reason of illness, absence or any other cause unable to perform the functions of his office, the function of the office shall be performed by a suitable person as the Chancellor may appoint for the purpose.

2.6.2

. Powers and Functions. - 2.6.2.a. The Chief Finance and Accounts Officer shall be member Secretary of the Finance Committee, without right to vote.

2.6.2

.b. The Chief Finance and Accounts Officer shall perform financial functions as may be assigned to him by the

Chancellor.

Provided that the Chief Finance and Accounts Officer shall not incur any expenditure or make any investment without the previous approval of the Chancellor

2.6.2

.c. Subject to the control of the Governing Body/ Chancellor, the Chief Finance and Accounts Officer shall:

2.6.2

.c.(i). Ensure that the limits fixed by the Finance Committee for recurring and non-recurring expenditure for a year are not exceeded and that all moneys are spent on the purposes for which they are granted or allotted.

2.6.2

.c.(ii). Promote and submit to the Chancellor quarterly, half-yearly and annual cash-flow projection and status of accounts for these periods for the consideration of the Governing Body.

2.6.2

.c.(iii). Be responsible for the preparation of annual accounts and the budget of the University for the next financial year and for their presentation to the Governing Body.

2.6.2

.c.(iv). To keep a constant watch on the state of cash and bank balance and on the state of investment.

2.6.2

.c.(v). To watch the progress of the collection of revenue and advice on the methods of collection employed.

2.6.2

.c.(vi). To examine ways and means to augment the finances of the University, and to rationalize expenditure, and submit proposals thereon to the Chancellor.

2.6.2

.c.(vii). Have the accounts of the University regularly audited by an internal audit party.

2.6.2

.c.(viii). Ensure that the registers of buildings, lands, furniture and equipments are maintained up-to-date and that the stock checking of equipment and other consumable materials in all offices, special centers, specialized laboratories, colleges and institutions maintained by the University is conducted,.

2.6.2

.c.(ix). Call for explanation for unauthorized expenditure and for any other financial irregularities and suggest disciplinary action against the persons at fault: and

2.6.2

.c.(x). Call from any part of the institution/college/school under the University, any information or returns that he may consider necessary for the performance of his functions.

2.7

The Dean of Students' Welfare. - 2.7.1. The Dean of Students' Welfare shall be appointed by the Vice- Chancellor for a period of two years from amongst the Professors, Associate Professors or Directors/Principals.

Provided that if the Vice-Chancellor thinks if necessary, for administrative reasons, he may revert the Dean to his original post and appoint another person as Dean for unexpired period.

2.7.2

. Power and Function of the Dean of Students' Welfare:- Dean of Students' Welfare shall ensure that interest and welfare of the students is secured in the University and shall take all such steps which shall be necessary in the interest of the welfare of students in the University.

2.8

Proctor. - 2.8.1. Appointment of Proctor:

2.8.1

.(i). The Vice-Chancellor may, in consultation with the Chancellor, select and appoint a senior teacher of the University to function as Proctor whole time or in addition of his duties, for a period of two years and shall be eligible for re-appointment.

Provided that if the Vice-Chancellor thinks if necessary, for administrative reasons, he may, in consultation with the Chancellor, revert the Proctor to his original post and appoint another person as Proctor for unexpired period.

2.8.2

. Powers and Functions of Proctor. - 2.8.2.a. The Proctor shall be responsible for the maintenance of discipline among the students and shall, in consultation with the Vice-Chancellor, establish appropriate norms and procedures therefore.

2.8.2

.b. The Vice-Chancellor shall, in consultation with the Chancellor, make provision for the necessary administrative support for the office of the Proctor.

2.9

Controller of Examination. - 2.9.1. Appointment and Removal:

2.9.1

.(i). The Controller of Examinations shall be a whole time salaried employee of the University and shall be appointed by the Vice-Chancellor on the recommendation of Selection Committee with the consent of the Chancellor. The qualifications and grade of pay for the post of Controller of Examination shall be such as specified by the University from time to time unless otherwise mentioned by the University in the advertisement/ appointment letter.

2.9.1

.(ii). When the office of the Controller of Examinations is vacant or when he is, by reason of illness, absence or any other cause, unable to perform the functions of his office, the functions of the office shall be performed by such person as the Vice- Chancellor, in consultation with the Chancellor, may appoint for the purpose.

2.9.1

.(iii). If the Vice-Chancellor is satisfied, on any enquiry made or caused to be made on a representation made to him or otherwise, that the continuance of the Controller of Examination in his office is prejudicial to the interest of the University or the situation so warrants, he may with the approval of Chancellor, by an order in writing and stating the reasons therein for doing so, ask the Controller of Examination to relinquish his office from such date as may be specified in the order.

2.9.2

. Powers and functions. - The Controller of Examination shall:

2.9.2

.a. Take all measures necessary to ensure impartial and fair conduct of the entire examinations process from preparation of question-papers to the declaration of results:

2.9.2

.b. Control the conduct of all University examinations and superintendence on all other arrangements necessary therefore and the execution of all processes connected therewith in accordance with the manner prescribed by the Ordinance on Examination.

2.9.2

.c. Issue all notices for convening meeting of the Board of Examinations of the University in connection with the examinations, and maintain and keep the minutes of all such meetings and will be the Secretary of Board of Examination.

2.9.2

.d. Call from any part of the institution/college/school under the University any information or returns that he may consider necessary for the performance of his functions and to discharge his responsibilities, and

2.9.2

.e. Notwithstanding anything contained in these Statutes, the Ordinances and the Regulations, perform such other functions, administrative or academic, as may be specified, from time to time, by the Governing Body, Chancellor or the Vice- Chancellor.

2.10

Dean of Faculty. - 2.10.1. Appointment and Removal:

2.10.1

.(i). The Vice-Chancellor may, in consultation with the Chancellor, determine the number of Faculty, and the number of categories of disciplines/Schools or constitute each Faculty for purposes of academic administration and of appointing a Dean for each such Faculty. He may likewise appoint a Professor as the Dean for each such Faculty.

2.10.1

.(ii). Head of the Department or a senior Professor of the University designated by the Vice-Chancellor with the consent of the Chancellor shall exercise the power of the Dean of the Faculty concerned for a period of two years.

Provided that in the Faculty of Medicine and Faculty of Dentistry or any other Faculty, no Professor shall be appointed as Dean of the Faculty if he does not have the requisite qualifications and experience as prescribed by the respective Apex Body/Council as the case may be.

Provided further that if the Vice-Chancellor thinks if necessary, with the consent of Chancellor, for administrative reasons, he may revert the Dean of Faculty to his original post and appoint another person as Dean of faculty for unexpired period.

2.10.1

.(iii). If at any time, there is no Professor or suitable teacher in a Faculty, the Vice-Chancellor, shall exercise the powers of the Dean of the Faculty concerned.

2.10.1

.(iv). A Dean of Faculty may resign his office at any time during his tenure, and any Professor may decline the offer of appointment as the Dean of Faculty.

2.10.1

.(v). When the office of the Dean is vacant or when the Dean is, by reason of illness, absence or any other cause, unable to perform the functions of his office, the functions of his office, shall be performed by such persons as the Vice-Chancellor may appoint for the purpose.

2.10.2

. Powers and functions. - 2.10.2.a. The Dean shall be the Head of the Faculty and shall be responsible for the conduct and maintenance of the standards of teaching and research in the Faculty.

2.10.2

.b. The Dean shall supervise and coordinate teaching and research in the Faculty through the Head of Departments, and take steps to promote interdisciplinary teaching and research wherever necessary

2.10.2

.c. The Dean shall formulate policies & procedure and development programme of the Faculty and present them before the Academic Council with the approval of the Vice-Chancellor.

2.10.2

.d. The Dean shall coordinate the functioning of the various disciplines/ Schools/ department/ Centre under his charge, and assist the Vice-Chancellor in implementing the policies and directions of the Chancellor, the Governing Body and the Academic Council.

2.10.2

.e. The Dean shall have the right to be present and to speak at any meeting of the Board of Studies or committee of the School, as the case may be, but not the right to vote there unless he is a member thereof.

2.10.2

.f. The Dean of Faculty shall have the authority to exercise all such disciplinary powers over the students in the Departments as may be necessary for the proper conduct of the School. The Dean may also frame such supplementary rules, as he deems necessary to maintain discipline in the Faculty with the prior approval of Vice- Chancellor.

2.10.2

.g. The Dean shall be In charge of all extra curricular activities of Faculty.

2.10.2

.h. The Dean in consultation with Vice-Chancellor may delegate some of his powers to any officer working under him for the sake of administrative control and convenience.

2.10.2

.i. The Dean shall be overall In charge of all academic and administrative matters pertaining to Faculty and also shall implement all non-academic development plans approved for the Faculty and take necessary actions/decisions with the permission of Vice-Chancellor.

2.10.2

.j. The Dean shall perform such other functions as may be assigned to him by the Chancellor/Vice- Chancellor and Board of Management and exercise such other powers as may be prescribed by the Regulations from time to time.

2.10.2

.k. The Dean of the Faculty shall take suitable steps to have the meeting of the Faculty convened and to give effect to the decisions/recommendations of the Faculty

2.11

Director/principal. - 2.11.1. Appointment: The Director/Principal shall be appointed by the Chancellor on the recommendation of the Vice- Chancellor.

The Chancellor may remove the Director/Principal on the ground of misconduct, inefficiency, financial irregularities or any other reason as may be considered not in the interest of University.

2.11.2

. Power and Function: The Director/Principal shall be the head of the institute/School and shall be responsible for the administration, academic excellence and maintenance of discipline among the staff and students of the institution. He shall perform such other powers and functions as may be assigned to him by the Vice Chancellor/Chancellor and Board of Management.

2.12

Head of Department. - 2.12.1. Appointment and Removal:

2.12.1

.(i). Each Department shall have a Head whose functions and terms and conditions of appointment shall be laid down by the Academic Council. Normally a senior most Professor will be appointed Head of Department by the Vice- Chancellor, but in the department where there is more than one Professors, the Vice-Chancellor may appoint any Professor as Head of Department. Where there is no Professor, the Vice-Chancellor may appoint any Associate Professor as Head of Department.

2.12.1

.(ii). If deem fit, the Vice-Chancellor can appoint a Head of Department by rotation from amongst the Professors (or where there is no Professor, from among the Associate Professors) by seniority for a period specified in the appointment orders.

2.12.1

.(iii). The Vice-Chancellor may remove the Head of Department on the ground of misconduct, inefficiency, financial irregularities or any other reason as may be considered not in the interest of University.

2.12.2

. Power and Function. - The Head of Department shall:

2.12.2

.a. Be responsible for the organization and conduct of teaching and research of his Department and for that purpose shall pass such orders as may be necessary in consultation with the Dean of the Faculty.

2.12.2

.b. Tender advice to the Dean of Faculty on all matters pertaining to his field in respect of teaching.

2.12.2

.c. Submit to the Dean of Faculty concerned the budgetary needs of his Department.

2.12.2

.d. Recommend to Dean of Faculty the work load of each member of the staff with respect to teaching and research.

2.12.2

.e. Assume responsibility for all University properties and facilities assigned to his Department

2.12.2

.f. Recommend to the Dean of Faculty proposals for making improvement in the working of his Department, and

2.12.2

.g. Shall be the Chairperson of Board of Studies of his department, he shall be responsible to record and circulate the minutes of the meetings.

2.13

University Librarian. - 2.13.1. Appointment and Removal. - 2.13.1.(i). The University Librarian shall be appointed by the Vice-Chancellor on the recommendation of a Selection Committee constituted for the purpose by the University.

2.13.1

.(ii). The qualification and grade of pay for the post of University Librarian shall be such as prescribed from time to time by the University.

2.13.1

.(iii). The Vice-Chancellor can terminate the service of the University Librarian on the ground of misconduct, inefficiency,

financial irregularities or any other reason as may be considered not in the interest of the University.

2.13.2

. Powers and Functions. - The University Librarian shall be responsible for the maintenance of all libraries of the University.

The Librarian shall:

2.13.2

.a. Have general overall supervision of the University libraries and library personnel including all campuses and departmental libraries or collections.

2.13.2

.b. Prepare the library budget for the University libraries.

2.13.2

.c. Advise at the beginning of each financial year each campus library of the amount of money that will be available for the purchase of library materials for each of the respective libraries, including the department collections.

2.13.2

.d. Have the responsibility of receiving and accessioning all library materials.

2.13.2

.e. Have the responsibility of initiating the requisition for all library materials

2.13.2

.f. Have the responsibility of renewing, in time subscription of journals

2.13.2

.g. Prepare a library newsletter at prescribed intervals which will carry a list of all library materials received since the last preceding newsletter and other timely library news of interest to students and staff

2.13.2

.h. Initiate, participate and cooperate in programme designed to stimulate and encourage the use of the library by students and staffs

2.13.2

.i. Arrange library hours which will permit maximum library use by both students and faculty, and

2.13.2

.j. Arrange for departments small collections of volumes and journals that are in almost constant use by the staff and post-graduate students as references

2.14

Other Officers. - The other Officers of the University as mentioned in the List of Officers at para 2.1.1 of Chapter-2 shall be appointed by the Vice- Chancellor with the approval of the Chancellor and shall function as directed by Chancellor/Vice-Chancellor/Board of management time to time. Further, the Chancellor may declare and designate any deserving person as Officer of University or create new post as per requirement of University and declare it as Officer of University.

Chapter - 3.

Authorities of The University

3.

Constitution, Powers and Functions of the Authorities of the University.

- 3.1. Governing Body:-

3.1.1

The Governing Body shall consist of the following members, namely:-

3.1.1

(i)

. The tenure of membership of members in each category referred to in clauses (c), (d) and (e) of sub-section (1) of Section 22 of the Act shall be till further nomination. However, the persons so nominated shall be eligible for re-nomination for further terms.

3.1.1

(ii)

. The quorum for meetings of the Governing Body shall be four. In case the quorum is not complete, the meeting shall

be adjourned for half an hour. The meeting shall be reconvened after half an hour at the same venue. Neither a quorum nor a notice shall be necessary in the case of such a meeting.

3.1.1

(iii)

. The Governing Body shall meet three times in a Calendar year.

3.1.1

(iv)

. The Governing Body shall have perpetual succession and common seal and any of its acts or proceedings shall not be invalidated because of any vacancy in its membership.

3.1.2

. Powers and Functions of Governing Body. - The Governing Body shall be the supreme authority of the University and shall have the following powers and functions, namely:-

3.1.2

.a. To provide general superintendence and directions and to control functioning of the University by using all such powers as are provided by this Act or the Statutes, Ordinances, Regulations or Rules made there under.

3.

1.

.2.b. To review the decisions of other authorities of the University in case they are not in conformity with the provisions of this Act or the Statutes, Ordinances, Regulations or Rules made there under.

3.1.2

.c. To approve the budget and annual report of the University.

3.1.2

.d. To lay down the extensive policies to be followed by the University.

3.1.2

.e. To recommend to the sponsoring body about the voluntary liquidation of the University if a situation arises when smooth functioning of the University does not remain possible, inspite of all efforts.

3.1.2

.f. The Governing Body shall meet at least three times in a calendar year.

3.1.2

.g. The quorum for meetings of the Governing Body shall be four.

3.1.2

.h. To regulate and enforce the discipline among members of the teaching, administrative and other staff of the University in accordance with these Statute and the Ordinance.

3.1.2

.i. To provide the building, premises, furniture and apparatus and other means needed for carrying on the work of the University.

3.1.2

.j. To take or authorize whatever measures necessary to protect and defend the interests of the University, in any legal or other proceedings by or, against the University.

3.1.2

.k. To constitute standing/ special committees consisting of one or more of members of Governing Body, or persons outside the University to advice on the functions of the Governing Body.

3.1.2

.l. To select a common seal and logo for the University and provide for the custody and use of such seal and logo.

3.1.2

.m. To institute honorary degree, fellowship, scholarship, studentship, medals and prizes on the recommendation of the Academic Council/ Chancellor

3.1.2

.n. To exercise such other powers and perform such other functions as may be conferred or imposed on it by the Act or the Statute.

3.1.2

- .o. To have control, supervision and superintendence over all other authorities, bodies and officers of the University and
3.1.2
- .p. To sanction, abolish any teaching and non teaching posts, their re-allocation or re-designation.
3.1.2
- .q. To do all such acts and things which the Governing Body may deem fit and proper in the interest of the University.
3.1.2
- .r. To charge new school on the recommendation of Board of Management
3.2
- Board of Management. - 3.2.1. The Board of Management shall consist of the following members, namely:-
3.2.1
- .a. The Vice-Chancellor
3.2.1
- .b. Two members of the Governing Body, nominated by the sponsoring body.
3.2.1
- .c. Three persons, who are not the members of the Governing Body, nominated by the sponsoring body.
3.2.1
- .d. Three persons from amongst the teachers, nominated by the sponsoring body
3.2.1
- .e. Two teachers, nominated by the Vice-Chancellor
3.2.2
- . The Vice-Chancellor shall be the Chairperson of the Board of Management
3.2.3
- . The powers and functions of the Board of Management shall be such as may be prescribed below at para 3.7.
3.2.4
- . The Board of Management shall meet once in every two months.
3.2.5
- . The quorum of meeting of the Board of Management shall be five
3.2.6
- . The Board of Management shall have perpetual succession and common seal and any of its acts or proceedings shall not be invalidated because of any vacancy in its membership.
3.2.7
- . The Board of Management shall have following powers and functions. - 3.2.7.a. Subject to powers conferred by or under the Act, on the Vice-Chancellor and Academic Council, to determine and regulate all the matters concerning the management of the colleges, schools, research centers, laboratories etc.
3.2.7
- .b. To manage any fund of the University placed at its disposal for any specified purpose.
3.2.7
- .c. To make Ordinance and shall amend or repeal them for various academic programmes.
3.2.7
- .d. To exercise such other powers and perform such other duties as are conferred or imposed on it by the Act or Statutes
3.2.7
- .e. With the prior approval of the Governing Body to take steps for establishment, expansion or alteration in the colleges, schools, departments, centers, institutes of higher learning, specialized laboratories, libraries and museums on the recommendation of the Council.
3.2.7
- .f. On recommendation of Academic Council to take decision to modify or revise the scheme for the organization and assignment of subject to the faculties
3.2.7
- .g. To manage the academic affairs of the institutions of the University in consultation with Academic Council.
3.2.7

.h. On the recommendation of the Academic Council to constitute of Fellowship/Scholarship/Freeship and other fee exemption, medals and other awards after obtaining the approval of the Chancellor.

3.2.7

.i. To make subsequent Statute with the approval of the Governing Body

3.2.7

.j. To recommend to the Governing Body for creation of new Faculty/school

3.3

Academic Council. - 3.3.1. The Academic Council shall consist of the followings:

3.3.1

.(i). Vice-Chancellor

3.3.1

.(ii). Dean of Faculties

3.3.1

.(iii). Director/Principal of Institutes/Schools/Colleges (Maximum four amongst the Director/Principal of Institutes/Schools maintained by Al-Karim University shall be nominated by rotation by the Vice-Chancellor in consultation with Chancellor whose terms of office will be for One year).

3.3.1

.(iv). Such members of external experts as may be co-opted by the Vice-Chancellor with the approval of the Chancellor.

3.3.1

.(v). Head of each PG/University Department (Maximum six amongst the HOD/PG Department maintained by Al-Karim University shall be nominated by rotation by the Vice-Chancellor in consultation with Chancellor whose terms of office will be for One year).

3.3.1

.(vi). Controller of Examination

3.3.1

.(vii). University Librarian.

3.3.1.2

. The Vice-Chancellor shall be the Chairperson of the Academic Council.

3.3.1.3

. The Academic Council shall meet at least two times each year and it may adopt its own rules of procedure for scheduling and conduct of its own meetings.

3.3.1.4

. Quorum of the Academic Council: One-third of the total members of the Academic Council shall constitute quorum. In case the quorum is not complete the meeting shall be adjourned for half an hour. The meeting shall be reconvened after half an hour at the same venue. Neither the quorum nor notice shall be necessary in the case of such meeting.

3.3.1.5

. All nominated members shall hold their membership for period as nominated.

3.3.1.6

. Committee:

3.3.1.6

.(i). The Academic Council may constitute one or more Standing or Special Committee to assist it in performance of its functions.

3.3.1.6

.(ii). All decisions/actions taken by the Vice-Chancellor on the basis of recommendation of the Standing Committee for academic affairs shall be placed before the next meeting of the Academic Council for its ratification.

3.3.2

. Powers and Functions of the Academic Council. - The Academic Council shall have the following powers and functions, namely:-

3.3.2

.a. To exercise general supervision over the academic policies of the University and to give direction regarding methods of instruction, co-operative teaching among faculties, evaluation of research or improvements in academic standards.

3.3.2

.b. To approve the syllabus of programme of studies as recommended by Board of Studies, periodic review of syllabi, teaching methods, training of faculty and assessment of performance of students and library resources.

3.3.2

.c. To bring about inter-Faculty/inter-school coordination, to establish or appoint committees or boards, for taking up projects on an inter-Faculty basis

3.3.2

.d. To consider matters of general academic interest either at its own initiative or referred to by a Faculty, or the Board of Management and to take appropriate action thereon

3.3.2

.e. To review the working of the Faculties as and when necessary

3.3.2

.f. To formulate, modify or revise schemes for the organization of and assignment of subjects to Faculties and to report to the Board of Management as to the exigencies of the abolition, reconstitution or division of any Faculty or the amalgamation of one or more Faculties.

3.3.2

.g. To make recommendations to the Board of Management for the establishment/expansion of and/or alteration in various Schools, Departments, Centers, Institutes of higher learning, specialized laboratories, libraries and museums, howsoever designated through the Chancellor

3.3.2

.h. To formulate, revise or redefine the academic fields of study or subjects allocated to a School/Institute/Faculty/Center, a Department or any unit of an academic programme.

3.3.2

.i. To recommend to the Board of Management the new draft Ordinances or Regulations for various academic programmes of the University. However, for various academic programmes, Academic Council will be the final authority.

3.3.2

.j. To recognize diplomas and degrees of other Universities and institutions and to determine their equivalence with the diplomas and degrees of the Al-Karim University, Katihar and to collaborate with other Universities anywhere.

3.3.2

.k. To perform in relation to academic matters, all such functions and to do all such acts as may be necessary for the proper carrying out of the provisions of the Act, the Statutes and Ordinances.

3.3.2

.l. To consider and take decisions on the recommendations of the Committee for Advance Studies and Research constituted under these Statutes.

3.3.2

.m. To make recommendations to the Board of Management, on creation, abolition of teaching posts, their reallocation or re-designation through Chancellor.

3.3.2

.n. To make proposals for institution of fellowship, scholarship, freeships and other fee exemption, medals and other awards.

3.3.2

.o. To promote and support research within and outside the University and to require periodic reports thereon.

3.3.2

.p. To promote publications by the teachers and others including publication of Journals and other publications by and in the name of the University.

3.5.2

.q. To submit an annual report of its activities to the Chancellor, and

3.3.2

.r. To frame such regulations and rules consistent with the Statutes and Ordinances regarding the academic functioning of the University, discipline, residences, attendance and any other requirement of University in this regard.

3.4

Faculty. - 3.4.1. The University shall have the following faculties:-

3.4.1

.(i). Faculty of Medicine: This will include Medicine, Health Technology, Public Health and such other stream related to Medical and Health Science.

3.4.1

.(ii). Faculty of Nursing: This will include Nursing and such other stream related to Nursing.

3.4.1

.(iii). Faculty of Management and Technology: This will include all streams connected with Management and Administration of Business.

3.4.1

.(iv). Faculty of Engineering and Technology: This will include Information Technology, Nano Technology, Bio-Technology, Design Technology, Environment Science, River Studies, Computer Science and such other stream related to Engineering and Technology.

3.4.1

.(v). Faculty of Education and Training: This will include Education and Training of different grades.

3.4.1

.(vi). Faculty of Humanities & Social Sciences: This will include English, Economics Political Science, History, Library Science, Geography and Sociology and all streams related to it.

3.4.1

.(vii). Faculty of Commerce: This will include Accounting and Financial Management, Banking and Insurance, Business Economics, Commerce and Business Management, Cooperative Management and Rural Studies etc. and all streams related to Commerce.

3.4.1

.(viii). Faculty of Science: This will include Physics, Chemistry, Zoology, Botany, Statistics, Mathematics and all streams related to it.

3.4.1

.(ix). Faculty of Law: This will include Law and all streams related to it.

3.4.1

.(x). Faculty of Mass Communication: This will include Mass Communication, Journalism and all streams related to it.

3.4.1

.(xi). and any such other Faculty as may be approved by Governing Body on the recommendation of Board of Management/Academic Council.

3.4.1

.(xii). Each Faculty will have different Schools.

3.4.2

. Each school shall have Academic Affairs Committee consisting of following members, namely:-

3.4.2

.(i). Director/Principal of concerned Institute- Chairperson

3.4.2

.(ii). Head of each department

3.4.2

.(iii). One or more teachers from the Faculty/school nominated by the Vice-Chancellor.

3.4.3

.(i). The meeting of the Academic Affairs Committee shall be held once a quarter.

3.4.3

.(ii). Special meeting shall be called by the Chairperson at the direction of the Vice-Chancellor or the Dean of the Faculty concerned.

3.4.3

.(iii). One-third of the total members of the School shall constitute a quorum. In case the quorum is not complete, the meeting shall be adjourned for half an hour. The meeting shall be reconvened after half an hour at the same venue. Neither a quorum nor a notice shall be necessary in the case of such a meeting.

3.4.4

. Powers and Functions of Academic Affairs Committee. - 3.4.4.a. To coordinate teaching, disciplines and research activities of Departments assigned to the School and to promote and provide for interdisciplinary teaching and research and to arrange for examination and periodical tests in subject falling within purview of the School.

3.4.4

.b. To appoint Committee or to undertake research projects common to more than one department.

3.4.4

.c. To forward recommendations of Board of Studies to Academic Council/Committee for Advance Studies and Research.

3.4.4

.d. To perform such other functions as the Academic Council may prescribe, and

3.4.4

.e. In addition to the provisions made by the Statute, the Schools shall recommend to the Academic Council, the schemes for improvement in academic standards.

3.5

Board of Studies. - 3.5.1. Each Board of Studies shall consist of the followings members, namely:-

3.5.1

.(i). Head of Department (Chairperson)

3.5.1

.(ii). Teachers of the Department

3.5.1

.(iii). Two teachers from other departments nominated by the Vice-Chancellor.

3.5.2

. The Board of Studies shall have following powers and functions, namely:-

3.5.2

.a. To allocate teaching work to faculty members of the department

3.5.2

.b. To recommend books, including text-books, supplementary reading reference books and other study material for such courses of study

3.5.2

.c. To recommend to the Academic Council for its approval the preparation and publication of selections or writing of work of authors and other matters as well as material consequent to curriculum development by the teachers of the University for its introduction in the syllabi of the courses of study under the purview of the Departments/Boards in accordance with the Regulations made by the Academic Council in that respect

3.5.2

.d. To discuss and if necessary suggest changes in the syllabi

3.5.2

.e. To recommend to the Examination Board to consider the names of suitable persons for inclusion in the panels for appointment as paper setters, examiners and moderators at the University examinations in the subject

3.5.2

.f. Proposal of research by the faculty members

3.5.2

.g. To recommend the Examination Board, names of persons suitable for appointment as examiner for evaluation of thesis, dissertations and conduct viva-voce examinations, wherever prescribed, for awarding post-graduate, doctorate and higher degrees

3.5.2

.h. To recommend organization of orientation and refresher courses in the subject, and

3.5.2

.i. Perform all other functions as may be assigned by the Academic Council

3.5.3

. Procedure for conduct of business at the meeting of the Departments/Board of Studies. - 3.5.3.(i). The meeting of the

Board of Studies shall be convened by the Head of Department or in his absence by the senior most member of the Department and he shall send the notice of the meeting and the agenda to the members and shall also keep a record of the proceedings of the meetings.

3.5.3

.(ii). Unless specifically permitted by the Vice- Chancellor, not more than four meetings of the Board shall be held during one academic year. However, the Chairperson shall convene a meeting of the Board on the written requisition signed by a half of the total number of members of the Board with prior permission of the Vice-Chancellor.

3.5.3

.(iii). One-third of the total members of the Board shall constitute a quorum. In case the quorum is not complete, the meeting shall be adjourned for half an hour. The meeting shall be reconvened after half an hour at the same venue. Neither a quorum nor a notice shall be necessary in the case of such a meeting.

3.5.3

.(iv). The Chairperson of Board of Studies shall issue a notice of the meeting at least ten clear days prior to the date of meeting to all the members of the Board of Studies informing them the day, date, time and venue of the meeting.

3.5.3

.(v). The Chairperson of Board of Studies shall send at least five clear days prior to the date of meeting, the agenda of the meeting to members.

3.5.3

.(vi). Any two or more Boards of Studies at the direction of the Academic Council or the Board of Management shall meet and render a joint report upon any matter which lies within the purview of all of them. The quorum of a joint meeting of the Boards shall be as specified 19.3.(iii) above. The joint meeting shall elect its own Chairperson.

3.5.3

.(vii). All questions at a meeting of the Boards of Studies shall be decided by a simple majority of votes of the members present. The Chairperson shall also have a vote, and in the case of an equality of votes, have a casting vote.

3.5.3

.(viii). Any member not attending three consecutive meetings, without prior permission, shall cease to be a member. The Vice-Chancellor shall fill the vacancy, so caused, before the next meeting.

3.5.3

.(ix). The minutes of proceeding, of every meeting shall be prepared and signed by the Chairperson, and shall be placed before the Board of Studies at its next meeting for confirmation.

3.6

Finance Committee. - 3.6.1.a. The Finance Committee shall consist of the following members, namely:-

3.6.1

.a.(i). Chancellor- Chairperson

3.6.1

.a.(ii). Vice-Chancellor

3.6.1

.a.(iii). Two Deans of the Faculties to be nominated by the Chancellor, and

3.6.1

.a.(iv). Three persons nominated by the Chancellor.

3.6.1

.a.(v). Chief Finance and Accounts Officer - Member Secretary

3.6.1

.b. One-third of the total members of the Finance Committee shall constitute a quorum. In case the quorum is not complete, the meeting shall be adjourned for half an hour. The meeting shall be reconvened after half an hour at the same venue. Neither a quorum nor a notice shall be necessary in the case of such a meeting.

3.6.1

.c. All members of the Finance Committee other than ex-officio members shall hold office for a term of three years.

3.6.1

.d. The Chancellor shall preside at the meeting of the Finance Committee and in his absence the Vice- Chancellor shall preside over the meeting

3.6.1

.e. The Finance Committee shall meet at least twice every year to examine the accounts and to scrutinize proposals for expenditure.

3.6.2

. Power and functions of Finance Committee:

3.6.2

.a. The annual accounts and the financial estimates of the University prepared by the Chief Finance and Accounts Officer shall be laid before the Finance Committee for consideration and comments and thereafter submitted to the Governing Body for approval.

3.6.2

.b. The Finance Committee shall fix limits for the total recurring expenditure and the total nonrecurring expenditure for the year, based on the income and resources of the University (which, in the case of productive works may include the proceeds of loans). No expenditure shall be incurred by the University in excess of the limits so fixed.

3.6.2

.c. No expenditure other than that provided for in the budget shall be incurred by the University without the approval of the Finance Committee/ Chancellor.

3.7

Committee for Advance Studies and Research. - 3.7.1. There shall be a Committee for Advance Studies and Research, hereinafter, referred as the CASR of the University which shall consist of the following members, namely:-

3.7.1

.(i). Vice-Chancellor- Chairperson

3.7.1

.(ii). Deans of Faculties;

3.7.1

.(iii). Directors/Principals of Institutes/Schools;

3.7.1

.(iv). Two senior teachers nominated by the Chancellor as members for the period prescribed in nominations, and

3.7.1

.(v). Controller of Examinations- Member Secretary.

3.7.2

. The CASR shall meet at least twice in each Semester. It may lay down its own rules of procedure for its meetings, including rules for participation of special invitees without a right to vote.

3.7.3

. The Vice-Chancellor shall preside over the meeting of the CASR.

3.7.4

. The CASR shall regulate and oversee the formulation and conduct of all Post Graduate. Doctoral and Post-Doctoral instruction and all research programmes of the University, in accordance with the directions of the Academic Council.

3.7.5

. The CASR shall consider and may approve recommendations of Boards of Studies on all academic matters within the scope of Clause 3.9.3.

3.7.6

. The CASR shall formulate procedure for consideration and approval proposals for registration for Super Specialty/ M.Phil./Ph.D. and other doctoral degrees, and for all other matters concerning the supervision and evaluation of research work under such post-graduate and doctoral programmes, and recommend them to the Academic Council.

3.7.7

. The CASR may authorize the Vice-Chancellor to act on recommendations made by examiners on D.M./M.Phil. Dissertations and Ph. D. thesis, in accordance with the procedure laid down in this behalf by relevant Ordinances or Regulations made under these Statutes.

3.7.8

. The CASR may recommend to the Academic Council criteria for formulation and execution of research proposals by teachers and/or scholars attached to the University.

3.7.9

. The CASR shall submit its periodic reports to the Academic Council.

3.7.10

. The CASR may make recommendations to the Academic Council on all matters within its scope of its functions.

3.8

Examination Board. - 3.8.1. The Examination Board shall consist of the following members:-

3.8.1

.(i). The Vice-Chancellor- Chairperson.

3.8.1

.(ii). The Deans of Faculties.

3.8.1

.(iii). Controller of Examination- Secretary.

3.8.2

. Powers and Functions of Examination Board:

3.8.2

.a. The Examination Board shall render advice to the Vice-Chancellor on conduct of examinations and appointment of examiners, setters and moderators of the question papers, preparation, moderation and publication of examination results, submission of such examination results to the Academic Council and generally regulating the methods of improvement in the procedure of correct evaluation of achievement of students and the Vice-Chancellor shall be competent to take the final decision Provided further that the Vice-Chancellor shall have the power to order for re-evaluation of answer sheets in case he is dissatisfied that the evaluation of answer sheets has not been fairly done or evaluation has been done in violation of the University Statutes, Regulations, Rules or orders.

3.8.2

.b. To make arrangements for conducting the examinations including their venue and schedule, to maintain standard of examination and to publish results thereof.

3.8.2

.c. To recommend the Vice-Chancellor the names of the question setters, examiners including external examiners, moderators and tabulators for each programme of studies.

3.8.2

.d. To take such other steps for conduct of a fair and proper examination on the scheduled time.

3.9

Acting Chairperson of meetings. - Where no provision is made for a Chairperson to preside over a meeting of an authority of the University or any committee of such authority or when the Chairperson so provided for is absent, the members present shall elect one from among them to preside at such meeting.

Chapter - 4

4.

Appointment of Teachers and Employees and Service Conditions of Officers of University, Teachers and Employees of the University.

- 4.1. Designation of Teachers: The teachers shall include the followings:-

4.

1.

(i)

. Professors/Principals/Directors of Institutes conducting teaching and guiding research

4.

1.

(ii)

. Associate Professors/equivalents conducting teaching and guiding research.

4.

1.

(iii)

. Assistant Professors/equivalents conducting teaching and guiding research.

4.

1.

(iv)

. Demonstrators/Tutors/Senior Resident conducting teaching

4.

1.

(v)

. Director, Deputy Director and Assistant Director of Physical Education.

4.

1.

(vi)

. University Librarian, Deputy Librarian and Assistant Librarian.

4.

1.

(vii)

. Designation of teachers shall also be as per regulations of respective Apex/Regulatory Body.

4.

1.

(viii)

Any other post as decided by the Board of Management with approval of the Chancellor.

4.2

Manner of Appointment. - 4.2.(i). Whenever vacancies arise or when new posts are created, the appointment on such teaching posts shall be made through direct recruitment or by promotion of candidates available in the University.

4.

2.

(ii)

. All the appointments to permanent posts of teachers in the University shall be with the approval of the Chancellor on the recommendation of a Selection Committee in accordance with the provisions of these Statutes after such posts have been duly advertised with such qualifications as have been prescribed by the University Grants Commission/respective statutory councils of the field for each category of teaching posts and the candidates concerned have been interviewed by the Selection Committee except in case where such committee decides to consider the case of a candidate, otherwise than by a interview.

4.

2.

(iii)

. The person(s) who have retired from a teaching post of any Medical College/Institution/College may be appointed on teaching post for the remaining period of his age as permitted by the respective apex Council of the field and the U.G.C.

4.3

The Selection Committee shall consist of. - 4.3.(i). Vice-Chancellor- Chairperson

4.

3.

(ii)

. Nominee of the Chancellor

4.

3.

(iii)

. Dean of Faculty

4.

3.

(iv)

. Two experts in the concerned discipline nominated by the Chancellor:

Provided that for making temporary appointments to the posts of teachers for the temporary vacancy, an appointment shall be made on the recommendation of a Local Selection Committee consisting of Vice-Chancellor; Dean of the Faculty and Director/Principal/Head of the Institution/Department.

4.4

The Vice-Chancellor shall preside at the meetings of the Selection Committee.

4.5

Notwithstanding anything contained in the foregoing clauses of these Statutes, the Chancellor may invite a person of high academic distinction and professional attainment to accept a post of Professor in the University, on such terms and conditions as it deems fit, and on the person agreeing to do so, appoint him to the post.

4.6

The Chancellor of the University may appoint a teacher or any other academic staff working in any other University or institution for undertaking a joint project in accordance with the manner prescribed in the Ordinance.

4.7

Appointments on contract basis:

4.7.1

. The teachers shall as far as possible be appointed in substantive capacity. However, the Chancellor may, on an urgent basis authorize appointment of teacher on contract basis, when it deems it necessary and urgent.

Provided that such appointment shall as far as possible be in accordance with the selection norms and procedure laid down herein.

4.8

Administrative/ministerial/other non-teaching employees. - 4.8.1. Appointment:

4.8.1

.(i). The employee of University for the purpose of these Statutes mean administrative/ ministerial/ other non-teaching employee. It excludes persons working on contract or casual basis.

4.8.1

.(ii). Whenever vacancy of administrative/ ministerial/ other non-teaching employees arises or new post is created,

4.8.1

.(ii).(a). Appointment on such post in the University shall be made by the Vice-Chancellor with the approval of the Chancellor on the recommendation of a Selection Committee in accordance with the provisions of these Statutes after such posts have been duly advertised with such qualification as have been prescribed for the post.

4.8.1

.(ii).(b). The Selection Committee for appointment to the administrative/appointment to the administrative/ministerial/other non-teaching employees posts shall consist of the Vice-Chancellor, Registrar and one nominee of Chancellor or any committee constituted by the Chancellor.

Provided that the Vice-Chancellor shall preside at the meetings of the Selection Committee.

4.8.2

. Appointments on contract basis. - 4.8.2.(i). The employees shall as far as possible be appointed to substantive posts. However, the University may, on an urgent basis, authorize appointment of employees on contract basis, when it deems it necessary and urgent.

Provided that such appointments shall as far as possible be in accordance with the selection norms and procedures laid down herein.

4.9

Terms and conditions of service of Officers of University, Teachers and Administrative/ Ministerial and other Non-Teaching Employees. - 4.9.1. General:

4.9.1

.(i). All the officers/teachers/employees of the University or any of its institution shall, in the absence of any agreement to the contrary, be governed by the terms and conditions of service as specified in these Statutes. Teaching includes patient care services wherever required.

4.9.2

. Functions and Responsibilities of the Professor in a Department. - 4.9.2.(i). Teaching, including laboratory development

4.9.2

.(ii). Research and research guidance.

4.9.2

.(iii). Consultancy and training programmes.

4.9.2

.(iv). Providing academic leadership in both undergraduate and post-graduate courses in relevant field of specialization.

4.9.2

.(v). Initiation and participation in continuing educational activities.

4.9.2

.(vi). Students counseling.

4.9.2

.(vii). Interaction with other institutions, Universities at State, national and international levels.

4.9.2

.(viii). Publishing papers in national and international journals.

4.9.2

.(ix). Examination work such as organizing, supervision and assessment etc. pertaining to the department and University examinations.

4.9.2

.(x). Curriculum development and developing resource material.

4.9.2

.(xi). Promotion of ethics, values and feeling of being all of us Indian amongst students by setting his/her own role model.

4.9.2

.(xii). Any other assignment given by the Board of Management/Academic Council.

4.9.3

. Associate Professor in a Department. - 4.9.3.(i). Teaching including laboratory instructions.

4.9.3

.(ii). Research activities and research guidance.

4.9.3

.(iii). Curriculum development and developing resource materials.

4.9.3

.(iv). Participation in continuing education activities.

4.9.3

.(v). Academic and administrative planning and development work at departmental level and assisting at institutional level.

4.9.3

.(vi). Students counseling and interaction.

4.9.3

.(vii). Participation in co-curricular and extra-curricular activities.

4.9.3

.(viii).Assisting in administration at departmental, institutional and University level.

4.9.3

.(ix). Contributing effectively in identifying live projects for the students wherever applicable.

4.9.3

.(x). Participation in programmes meant to improve his/her communication skills, computer literacy, personality and confidence.

4.9.3

.(xi). Conducting himself/herself in a manner, benefiting the noble profession of teaching by desisting himself/herself from the temptation of private tuitions and unfair practices.

4.9.3

.(xii). Promotion of ethics, values and feeling of being all of us Indian amongst students by setting his/her own role model.

4.9.3

.(xiii). Effective resource generation for the Department/ Faculty through consultancy, testing and projects.

4.9.3

.(xiv). Examination work such as organizing, supervision and assessment etc. pertaining to the department, University examinations.

4.9.3

.(xv). Any other functions assigned by the Academic Council/Dean/Director/Principal from time to time.

4.9.4

. Assistant Professor/ Demonstrators/Tutors/Senior Resident & other teachers in a Department. - 4.9.4.(i). Teaching in lecture, practical, tutorials.

4.9.4

.(ii). Planning and implementation of instruction in laboratory.

4.9.4

.(iii). Design and developing of innovative laboratory experimental setups.

4.9.4

.(iv). Student assessment and evaluation.

4.9.4

.(v). Developing resource material for teaching and learning.

4.9.4

.(vi). Assisting in continuing educational activities.

4.9.4

.(vii). Leading co-curricular and extra-curricular activities.

4.9.4

.(viii). Participating in Students Counseling.

4.9.4

.(ix). Liaison with parents and community.

4.9.4

.(x). Participating in programmes meant for improvement in his/her communication skills, computer literacy, personality and confidence.

4.9.4

.(xi). Conducting himself/herself befitting the noble profession of teaching by desisting himself/herself from the temptation of private tuition's and indulgence in unfair practices.

4.9.4

.(xii). Promotion of ethics, values and feeling of being all of us Indian amongst students by setting his/her own role model.

4.9.4

.(xiii). Examination work such as organizing supervision and assessment etc. pertaining to the department, University examination.

4.9.4

.(xiv). Any other functions assigned by the Academic Council/Dean/Director/Principal from time to time.

4.10

Administrative/ministerial/other non- teaching employees. - The functions and work of each administrative/ministerial/other nonteaching employee shall be determined by the Vice-Chancellor in consultation with Chancellor. However an employee can be assigned any work or he may be called upon to perform any extra work as may be assigned to him/her in the interest of the University.

4.10.1

. Service agreement, Probation and Physical Fitness:

4.10.1

.(i). At the time of recruitment, a service agreement shall be signed between the University and the officer/teacher/employee concerned and a copy of the same shall be deposited with the Registrar.

4.10.1

.(ii). Except as otherwise provided for in his/her contract of service, every officer/teacher/employee appointed shall be placed on probation for a period of one year for teaching staff & Officers/two year for non teaching staff as the case may be, on the expiry of probation period he/she shall be confirmed in his/her post, if he/she found, otherwise suitable.

4.10.1

.(iii). If he/she is not so confirmed, the Chancellor may, if it deems fit, dispense with his/her services as soon after the expiry of his/her probation period or extend the period of his/her probation, if he/she is not confirmed, his/her services shall be dispensed with after expiry of the period of extension of his/her probation.

4.10.1

.(iv). The service of an officer/teacher/employee appointed on probation may be terminated at any time during the probationary period without prior notice.

4.10.1

.(v). All officers/teachers/employees shall be required to produce a physical fitness certificate signed by Medical Superintendent, Katihar Medical College, Katihar before joining the post.

4.10.1

.(vi). The service of an officer/teacher/employee appointed on temporary/purely temporary basis may be terminated at any time without prior notice. However, a notice period of minimum one month or as per terms of appointment or salary in lieu thereof will be required.

4.10.2

. Age of Entry/Age of Retirement. - 4.10.2.(i). A person whose age is less than 18 years may not be appointed to any post in the University. Upper age limit for entry into service shall be as prescribed by the respective Apex Body/University. The Chancellor shall be competent to relax the age limit in special case.

4.10.2

.(ii). All officers/teachers/employees of the University shall, if they are not employed for a fixed period, will retire from the University service with effect from the afternoon of the last day of the month in which they attain the age as prescribed by University Grants Commission or respective Statutory Council of the field or Government (As applicable). However, the University can relax the upper age limit of retirement in special cases.

4.10.3

. Number of Posts (creation and abolition of posts). - The number of posts of teacher/employees shall be such as may be determined by the Vice-Chancellor with the approval of the Chancellor, provided that the Vice-Chancellor may obtain the recommendations of the Academic Council. The proposal for creation of new posts and abolition of post(s) received from any department shall be submitted to the Academic Council by Registrar. On the recommendations of the Academic Council the proposal shall be submitted for approval to the Chancellor.

4.10.4

. Qualification. - The academic and other qualifications of officers/teacher/administrative posts shall be such as may be prescribed by University Grants Commission or respective statutory Councils. The academic and other qualifications of ministerial and other non-teaching posts shall be such as may be laid down by the Vice-Chancellor with the approval of the Chancellor.

4.10.5

. Grades of pay and Allowances. - 4.10.5.(i). The grades of pay of officer/teaching posts shall be such as prescribed by University Grants Commission from time to time and adopted by the University unless otherwise mentioned by the University in the advertisement/appointment letter.

4.10.5

.(ii). The grades of pay of the administrative/ ministerial/ other non-teaching employees shall be such as may be determined by the Chancellor on the recommendation of the Vice-Chancellor.

4.10.5

.(iii). A officer/teacher/employee can be granted advance increment(s) on the basis of his/her good work and conduct by the Chancellor on the recommendations of Head of Department, Principal/ Director, Dean and Vice-Chancellor (on the recommendation of Vice-Chancellor in case of officer of University).

4.10.5

.(iv). Officers/teachers/employees appointed on adhoc basis or for a specific period or on contract will receive emoluments as may be agreed upon between them and the appointing authority, Provided that the appointing authority

will ensure that they possess minimum qualifications and/experience as prescribed by the University Grants Commission/ respective councils/ government.

4.10.5

.(v). Allowances. - Allowances such as Dearness Allowance, Special compensatory Allowances, Transport Allowance, House Rent Allowance, Deputation Allowance, Travelling Allowance, etc applicable to officers/teachers/employees shall be such as fixed by the University, taking into account the practices of other similar universities in the State. For retired persons government rules will be applicable for Dearness Allowance and other allowances.

4.10.5

.(vi). Increment:

4.10.5

.(vi).(a). Each annual increment shall be as prescribed in the applicable Pay Scale.

4.10.5

.(vi).(b). There shall be a review of performance of the officers/teachers/employees before grant of each increment. The officers/teachers employees shall have a right to be heard in the matter.

4.10.5

.(vi).(c). Where an efficiency bar has been prescribed in a time scale the increment next above the efficiency bar, shall not be given without the specific sanction of the Vice-Chancellor.

4.11

Leave. - 4.11.1. Casual Leave:

4.11.1

.(i). Casual leave admissible to the officers/ teacher/employees of the University shall be 16 days in a calendar year. It cannot, however, be combined with any other leave or vacation but can be combined with holidays/compensatory leave provided that the total period, including holidays does not exceed 12 days including 3 days casual leave at a time.

4.11.1

.(ii). Casual leave should always be applied for and sanctioned before it is availed, except in case of emergency.

4.11.1

.(iii). Following system of leave will be followed:

4.11.1

.(iii).(a). Maximum number of admissible Casual Leave in a quarter-05 days.

4.11.1

.(iii).(b). Officer/teachers/employees belonging to distant place can avail leave for longer duration for going to native place, on the basis of leaves available in their credit with the special permission of the Vice-Chancellor on the recommendations of the Dean of Faculty/ Controlling Officer concerned.

4.11.1

.(iii).(c). In case Casual Leave application is received, when there is no leave due in the credit, leave will not be recommended or sanctioned by the Director/Principal of School/Controlling Officer concerned. Such application shall invariably be put before Vice-Chancellor for taking decision.

4.11.2

. Academic Leave. - Five days paid Academic leave may be granted to officers/teachers for presenting papers/chairing session at National or State level Conferences with the prior approval of the Vice-Chancellor. In addition, fifteen days paid Academic leave may be granted to Teachers for undertaking examinations of different University as an External Examiner with the prior approval of the Vice-Chancellor.

4.11.3

. Medical Leave. - 4.11.3.(i). Total Medical leave upto ten days full pay/twenty days half pay in a calendar year shall be admissible.

4.11.3

.(ii). Medical Leave shall not be sanctioned during first six months of joining of service. In special cases sanction of Medical Leave can be considered during first six months by the Vice- Chancellor on the specific recommendation of Dean of faculty/Controlling officer. The sanction of Medical Leave shall be subject to submission of Medical Certificate.

4.11.4

. Earned Leave. - The earned leave admissible to an officer/teacher/employee of the University shall be 20 days for

each completed year of service subject to a maximum accumulation of 150 days but the maximum leave that may be availed at a time shall not exceed 30 days. Earned leave of more than 30 days in a calendar year can be availed with the approval of Vice Chancellor on the recommendation of Director/Principal/Controlling authority of the Institute.

4.11.5

. Compensatory Leave. - Compensatory Leave to Teaching and Non teaching Staff may be allowed for working more than 6 hours on holiday/Sunday due to service exigencies with the permission/approval of Director/Principal/ Controlling authority of the Institute. Such leave can be accumulated upto maximum 20 days and can be availed within a year.

4.11.6

. Extra-ordinary Leave. - Extra-ordinary leave may be granted to any University officer/teacher/employee in special circumstances:

4.11.6

.(i). When other leave is admissible but the University officer/teacher/ employee concerned applies in writing for the grant of extra-ordinary leave.

Or

4.11.6

.(ii). Specified by the competent authority. Such leave shall be without pay.

The Vice-Chancellor may commute retrospectively period of absence without leave into extra-ordinary leave. He may also commute extra-ordinary leave granted into leave of different kinds if the latter type of leave was admissible at the time extra-ordinary leave was granted.

4.11.7

. Maternity Leave. - Maternity leave upto maximum 90 days may be allowed to a female employee twice in service provided she is not entitled for any other such benefit through the University.

4.11.8

. Other leave rules. - 4.11.8.(i). If the officer/teacher/employee absents himself/ herself from duty without permission or overstays after his/her leave, his/her salary during the period of absence shall be forfeited, and if he/she remains absent or overstays for more than 2 weeks, his/her office shall be declared vacant:

Provided that the officer/teacher/employee has been asked to explain within reasonable time the reasons of his/her absence from office and such explanation has been found unsatisfactory by the competent authority.

4.11.8

.(ii). Leave account of each officer/teacher/employee of the University shall be maintained by concerned department/office and office of the Registrar.

4.11.8

.(iii). Leave cannot be claimed as of right.

4.12

Resignation, Termination of Service. - 4.12.1. The service of a officer/teacher/employee shall be liable to termination on any of the following grounds:

4.12.1

.(i). Gross negligence in discharge of duty;

4.12.1

.(ii). Misconduct;

4.12.1

.(iii). Insubordination, any breach of discipline or dereliction of duty;

4.12.1

.(iv). Physical or mental unfitness for the discharge of duty;

4.12.1

.(v). Any act prejudicial to the University or its property;

4.12.1

.(vi). Conviction by a Court of Law for offence involving moral turpitude's; and

4.12.1

.(vii). Guilty of activity which is anti secular and which tends to create communal disharmony.

4.12.2

. If a temporary officer/teacher/employee wishes to resign from service he/she shall give one month's/as per appointment letter prior notice in writing to the University. If the officer/teacher/employee fails to give such a notice, the University shall be entitled to recover salary from his due salary or any deposit in account of University, from him/her in lieu of such notice. The period of notice will be counted from the date of receipt of the notice in the University office. However, the notice period should be for working days of one month/as per appointment letter, no leave will be entitled in this period.

4.12.3

. If the University decides to terminate the services or to relieve a officer/teacher/employee not confirmed in the service, one month's/ as per appointment letter notice shall be given to him/her or in lieu of notice, he/she shall be paid one month salary/ as per appointment letter but if the services are terminated on any ground as mentioned in sub-clause 29.1 above, then University can terminate the services of the officer/teacher/employee immediately without giving him/her notice salary.

4.12.4

. A permanent officer/teacher/employee shall be required to give three months notice in case he/she desires to resign, or he/she shall pay to the University salary, in lieu of such notice period but if the University terminates services of permanent officer/teacher/employee on any ground mentioned in sub-clause 29.1 above, then University can terminate the services of such officer/teacher/employee immediately without giving him any notice and University shall not be liable to pay him/her any salary.

4.12.5

. An officer/teacher/employee before leaving the University service shall hand over the charge of his/her post to a duly authorized officer/teacher/employee as designated by the Vice-Chancellor or Registrar and shall return to the University all books, apparatus, furniture, computers and peripherals, mobile phone etc, issued to him/her for his/her personal use and shall pay all the charges due against him/her for occupation of residential quarters, water and electricity charges, etc. If he/she fails to do so, the University shall recover the amount due from him/her, on account of the above items, from his/her last salary or from the University contributions to his/her Provident Fund or any of his deposits lying with the University.

4.12.6

. An officer/teacher/employee who is in the occupation of residential accommodation of the University, shall on leaving the service of the University vacate the residence allotted to him/her by the University and shall handover his/her complete articles/furniture in the allotted house to a person designated by the Vice-Chancellor. In the absence of this, if there is any damage or loss of articles from the house noticed at the time of vacation, the University shall have the right to recover the amount from his/her salary or deposit with the University. The residential accommodation shall be vacated within a period of one week from the date of resignation. In special cases, the residential accommodation can be retained upto one month with permission of Vice- Chancellor/Chancellor.

4.12.7

. The Vice-Chancellor may suspend a officer/ teacher/ employee against whom any misconduct is alleged but before any orders for dismissal is passed by the competent authority, the officer/teacher/employee shall be informed about the allegations made against him/her and shall be given a reasonable opportunity to make such representation to the Vice-Chancellor/Chancellor. The decision of the Vice- Chancellor shall be final and binding on the officer/ teacher/ employee.

4.12.8

. Appeal. - A person is entitled to prefer an appeal to the Vice- Chancellor and may submit his/her appeal to the Registrar within one month of the date of the decision, by which he/she has been aggrieved, is duly served on him/her. If the person is not satisfied with the order of the Vice- Chancellor, he may appeal to the Chancellor and in such case the appeal should be submitted to the Registrar within one month of the order passed by the Vice-Chancellor. The decision of the Chancellor shall be final and binding.

4.13

Provident Fund and Insurance Benefit. - Officer/teacher/employee of the University shall be given the benefit of subscribing to the Employees Provident Fund & ESIC as per provisions of the EPF & MP Act and ESIC Act. Voluntary membership of EPF/ESIC will be decided by the Chancellor.

4.14

Record of service. - 4.14.1. There shall be a personal file for every officer/ teacher/ employee in which shall be placed all papers, records and other documents relating to his/her service in the University. The file shall contain in particular, a Service-Book giving a history of his/her service from the date of his/her appointment including increment, promotion, reward, punishment and all other special events of his/her service career. The service book shall also contain a leave account form for the officer/teacher/employee showing a complete record of all leave (except casual leave), earned as well unearned taken by him/her.

4.14.2

. Confidential reports file shall also be maintained for each officer/teacher/ employee.

4.15

Other conditions. - 4.15.1. An officer/teacher/employee of the University may be called upon to perform any extra work as may be assigned to him/her in the interest of the University.

4.15.2

. Official information obtained in course of employment must not be communicated by any officer/teacher/employee to any outsider or to the press without the prior written permission of the Vice-Chancellor/ Chancellor.

4.15.3

. The Vice-Chancellor shall be competent to allot such type of residential accommodation to a officer/teacher/employee of the University as he/she deems fit, provided that the officer/teacher/employee shall vacate such accommodation when called upon to do so by the Vice-Chancellor.

4.15.4

. Any matter regarding conditions of service not covered by the provisions of these statutes may be decided in accordance with the rules laid down by the University for officer/ teacher/employee or in such other manner as the Vice-Chancellor may deem fit and proper with the approval of the Chancellor.

4.15.5

. The University shall have the right to verify the character and antecedents of the officer/teacher/employee at the time of his/her first appointment or otherwise.

4.15.6

. An officer/teacher/employee of the University shall not take up any other job/employment or do private practice during the services of the University unless permitted by the University to do so.

4.15.7

. Code of professional ethics.-The University shall evolve its own professional and general ethics after full discussion in the Academic Council and incorporate the same in its Regulations, for strict observance by the academic and other staff of the University.

Chapter-5

5.

Procedure for Resolution of Disputes.

- 5.1. The Vice-Chancellor may in consultation with the Chancellor, appoint a senior teacher as the Dean of Students Welfare under Chapter 2 Clause 7 to oversee the welfare of the students. The Vice- Chancellor may, likewise, appoint teacher to assist the Dean of Student Welfare in performance of his functions. The Dean of the Students Welfare shall have the over-all charge of all extra-mural activities of the students. He shall be assisted by such staff as may be deemed appropriate by the Chancellor. However, Vice-Chancellor can appoint any officer/teacher of the University, for the arbitration of grievances, resolution of disputes and taking appropriate action in the matter.

5.2

Grievance or complaints, if any, from students shall be heard by the Dean of Students Welfare/Officer designated by Vice-Chancellor and he may make appropriate recommendations to the Vice-Chancellor.

5.3

The Governing Body shall establish appropriate grievance redressal mechanisms for dealing with grievances or complaint, if any from officers, teacher and other employees of the University. For this purpose, there shall be a Grievance Cell directly under the Vice- Chancellor.

5.4

In respect of any in-house proceedings on grievances, complaints or disputes, no outside individual or agencies shall be entitled to have access.

5.5

The Chancellor may appoint any person as Arbitrator for the Arbitration of matters concerning complaints from the persons outside the University but involving the University and the decision of the Arbitrator shall be binding on the parties.

5.6

The jurisdiction of courts/suits for all the purposes by and against the University shall be Katihar, Bihar.

Chapter - 6

6.

Maintenance of the Discipline among Students of the University.

- 6.1. All powers relating to discipline and disciplinary action in relation to students shall vest in the Vice-Chancellor

6.2

The Vice-Chancellor may delegate all or any of his/her powers as he/she deems proper to the Proctor and such other officers as he may specify in this behalf.

6.3

Without prejudice to the generality of his powers relating to the maintenance of discipline and checking anti-social and illegal activities and taking such action, in the interest of maintaining discipline as may seem to him appropriate, the Vice-Chancellor may, in the exercise of his power, by order, direct that any student or students be expelled, for a specified period, or be not admitted to a course or courses of study in a faculty, Department or Institution for a certain period, or be punished with fine for an amount to be specified in the order, or debarred from taking a University or Departmental Examination or Examinations for one or more years, or that the results of the student or students concerned in the Examination or Examinations in which he/she or they have appeared be withheld or he/she/they may even be expelled from the course forever as the Vice-Chancellor may deem fit.

6.4

The Dean of Faculties and Heads of Teaching Departments in the University shall have the authority as specified by Ordinances to exercise all such disciplinary powers over the students in their respective Institutions, Faculties and Teaching Departments in the University as may be necessary for the proper conduct of the Institutions/Faculty and teaching in the concerned Departments.

6.5

Without prejudice to the power of the Vice-Chancellor and the Proctor as aforesaid, detailed rules of discipline and proper conduct shall be framed by the University. The Deans of Faculties and Heads of Teaching Departments in the University may frame such supplementary rules, as they deem necessary for the aforesaid purposes. Students shall be notified of rules so made.

6.6

At the time of the admission, every student shall be required to sign a declaration to the effect that he submits himself to the disciplinary jurisdiction of the Vice-Chancellor and the other authorities of the University.

6.7

The University shall evolve its own academic and general ethics after full discussion in the Academic Council and incorporate the same in its Regulations, for strict observance by the students of the University.

Chapter - 7

7.

Power in Respect of Granting and Withdrawing Degrees.

- 7.1. Grant and Withdrawal of Degrees:

7.1.1

. The Academic Council may, by resolution passed by a majority of not less than two-thirds of the members present and voting:-

7.1.1.1

.(i). Make proposals to the Chancellor for the conferment of honorary degrees;

7.1.1.1

.(ii). Withdraw any ordinary degree or diploma conferred by the University; and

7.1.1.1

.(iii). With the sanction of the Chancellor, withdraw any honorary degree.

7.1.2

. Notwithstanding anything contained in this statute, in case of urgency, the Chancellor may confer an honorary degree to a distinguished person(s).

7.2

Convocations. - Convocations of the University for the conferring of degrees or for other purposes shall be held in such manner as may be prescribed by the Ordinances.

Chapter - 8

8.

Fee and Fellowships & Scholarships and Institution of Medals & Prizes.

- 8.1. Fee:

8.1.1

. The University shall charge fee for various programmes of studies as proposed by the committee constituted by the University in this regard and approved by the University. Besides the tuition fee, the Board of Management may also prescribe other fee like Hostel fee, Amenities Fee, Admission Fee, Examination Fee, Library Fee etc and refundable caution moneys for different purposes, in order to ensure use of University property by the students with due diligence and care, access to the library/laboratory, or other academic purposes, such as participation in seminars/workshops/conferences organized by the University. There shall not be any element of profiteering in it.

8.1.2

. In case a student discontinues/withdraw/requests to leave the course after the last date of admission, for whatsoever be the reason, he/she shall be required to deposit all fee for the remaining years (duration) of the whole course. The University shall have the right to realize such fees for remaining years from the student because he/she has blocked one seat of that particular discipline for remaining period of the programme causing financial loss to the University. No correspondence in this regard shall be entertained and decision of the University shall be final.

8.1.3

. At the time of admission of students if the University deems it proper, it will take bank guarantee from the student(s) in lieu of fee for the remaining period of full course.

8.1.4

. The Chancellor shall have the power of full/part exemption/ waiving of any kind of fee payable by any student for the academic year.

8.2

Fellowships and Scholarships. - 8.2.1. The Academic Council may recommend to the Vice-Chancellor to institute the award of Fellowships and Scholarships carrying such remuneration as may be fixed on the approval of Chancellor.

8.2.2

. Fellowships shall be tenable for one academic year in the first instance, but may in special cases be extended for a further period. The extension of fellowship shall be as per the criteria laid down by the University.

8.3

Medals and Prizes. - 8.3.1. The medals, certificates/cash prize for academic/work excellence of a student in the class or a programme and for a teacher/employee of the University may be instituted by the Board of Management on the recommendation of Academic Council

8.3.2

. Any private person, Trust or agency can propose to institute a medal/cash prize for a particular programme/course. The proposal shall be considered by Board of studies/Faculty and finally by Academic Council which can accept or reject the proposal. This recommendation of the Academic Council has to be approved by the Chancellor.

8.3.3

. Medals and Prize shall be awarded to the students/ teacher/ employees for their outstanding performance in sports, cultural activities, debates, seminars, etc.

Chapter - 9 Policy of Admissions

9.

Admission.

- 9.1. Admissions in the University shall be offered strictly on merit in accordance with the rules framed by the relevant bodies of the University and the law enforced time to time.

9.2

A candidate who applies for admission shall be presumed that he/she agrees to abide by/well acquainted with the University Rules, approval of the course and no litigation shall, therefore be tenable.

9.3

Admission in University shall be open to Indian citizens or Non- Resident Indians. However, University shall also admit foreign student as per the guidelines of the Central and the State Governments. Admissions in all programmes of University shall be made strictly on the basis of merit, provided that admission in professional and technical courses shall be made on merit determined through entrance test conducted by the University or University may associate with other universities to conduct admission test which offer similar courses or can also use the score of entrance tests conducted by Associations of Universities/other Federation/State agencies/other bodies for admission to any programme. However, in case of entrance test has not been conducted due to one or the other reasons or lesser availability of candidates, admissions shall be made on the basis of merit obtained in qualifying examination.

9.4

For NRI/foreign students admission shall be made on merit of marks obtained in qualifying examinations or as per regulations of the respective Apex Body/prevailing law.

9.5

University shall conduct entrance test of its own in all disciplines having one or more centers in the entire country or abroad maintaining the fairness and transparency.

9.6

For courses where admission is through merit in the qualifying examination weightage shall be given for excellence in sports and other extracurricular activities.

9.7

Reservation policy of the Government in admission of students belonging to Schedule Castes/ Schedule Tribes and other backward classes shall be governed by article 30(1) of the Constitution of India and the law laid down by the Supreme Court of India in the matter of admission of students in unaided private minority technical and professional institutions.

9.8

All admissions shall be provisional. If it is found at any stage that the qualifying examination of a candidate is not recognized by the University or he/she has concealed or given false information, such admissions shall be cancelled at any stage.

9.9

All admissions granted shall, in the first instance be deemed to be provisional. The office of Registrar shall confirm the admission after verification of his/her documents for eligibility and enroll the student by allotting him/her Enrollment Number.

9.10

Such student who were enrolled with any duly constituted university in the country can be migrated to the University with the approval of Academic Council. Such students shall be enrolled in the University and shall be students of Al-Karim University, Katihar.

9.11

Every student shall have to pass a medical test before admission, and the admission of those found medically unfit shall be cancelled.

9.12

The details of admission procedure shall be as prescribed in the Ordinances.

Chapter - 10

10.

Number & Alteration of Seats and Revision of Syllabi.

- 10.1. Number & Allocation of seats: The number of seats in different courses and increase of seats in different courses shall be governed by these Statutes and shall be decided as per approval from respective apex technical Councils of the fields and the Central Government or by the University where no Council exist or where Council's and Central Government approval is not required the number of seats shall be increased by the University subject to availability of necessary infrastructures.

10.2

On the recommendation of the Faculty the Academic Council shall consider the proposal in respect of number of seats or alternation/increase in seats in all the courses in the particular academic year. If the proposal is approved by Academic Council, the University will directly apply to the respective statutory Councils for the same wherever necessary.

10.3

Revision of Syllabi: The syllabi of a course/programme of study shall be subject to revision periodically as per need and development in field of study or revised syllabi approved by respective Councils shall be adopted as such. The Academic Council shall approve the revised syllabi on the recommendation of Board of Studies and Faculty.

Chapter - 11

11.

Financial Procedures.

- 11.1. Accounting policies and procedures: Chief Finance and Accounts Officer shall be responsible for maintaining the statements of income, expenditure accounts of the University.

11.1.1

. Following shall be the sources of income of the University.

11.1.1.1

.(i). Fee received from students for the course of studies;

11.1.1.1

.(ii). Donations from individual/organization or institutions received & transferred by Al-Karim Educational Trust.

11.1.1.1

.(iii). Hospital income;

11.1.1.1

.(iv). Borrowed funds;

11.1.1.1

.(v). Any other income received from Sponsoring Body; and

11.1.1.1

.(vi). Any other source approved by the authorities of the University.

11.1.2

. The account of the income received by the University during the year shall be maintained by Chief Finance and Accounts Office.

11.1.3

. Following shall be the expenditure heads;

11.1.3

.(i). Academic.

11.1.3

.(ii). Administrative.

11.1.3

.(iii). Infrastructure and maintenance of buildings.

11.1.3

.(iv). Laboratory, office and medical equipments.

11.1.3

.(v). Consumable items.

11.1.3

.(vi). Repairs maintenance.

11.1.3

.(vii). Expenditure on establishment of new department, college/ institution, campus in State, country and anywhere.

11.1.3

.(viii). Any expenditure as approved by the authorities/ Chancellor of the University.

11.1.3

.(ix). Salary and allowances.

11.1.3

.(x). Fee, remuneration, honorarium paid to the Professionals.

11.1.4

. All the expenditures made by the University during the year on different heads shall be maintained by Chief Finance and Accounts Office.

11.1.5

. The Annual accounts and balance sheet of the University shall be prepared under the direction of the Governing Body and shall, once at least every year be audited by a qualified practicing Chartered Accountant.

11.1.6

. Annual budget of the University shall be prepared by Chief Finance & Accounts Office and presented to the Governing Body for approval.

11.2

Collection and utilization of the fund. - 11.2.1. Donations to the fund may be accepted from individuals, organizations or institutions, by Al-Karim Educational Trust at its discretion.

11.2.2

. The fund shall be treated as a corpus, and shall be utilized for the purposes mentioned in these statutes.

Chapter - 12

12.

Establishment of New Institution(s), Off-campus(es), Creation of New Department(s) & Abolition or Restructuring of Existing Department(s).

- 12.1. The Colleges and Institutions which have been established before the commencement of the Al-Karim University Katihar established under Bihar Private Universities Act, 2013 (Act No. 20 of 2013) have become the institutions/academic departments of the University. Subsequently established college/schools/departments/faculties/institutions/teaching programme shall also be the institutions/ academic department of the University.

12.2

The new Faculty(s)/Department(s)/ Schools /Institute(s)/Offcampus(es)/ Study Centre(s)/ counseling & guidance centre(s) shall be established by the Chancellor on the recommendations of Academic Council. All the rules, ordinances and regulations shall be framed and approved by the Chancellor on the recommendations of the Academic Council.

12.3

The University can start Schools/ Postgraduate/ Post Doctoral / other course/programme along with number of seats allocated to these programmes in all disciplines and may apply directly to the Statutory Council(s) and the Central/State Government wherever necessary, for approval of course(s) and number of seats, in the course(s).

12.4

University may establish from time to time institutions, specialized laboratories or other units for research and instructions, study centers/ off-campus (es)/ counseling & guidance centre(s) and may also launch the study programme in distance/correspondence mode, as are in the opinion of the University, necessary for furtherance of its objectives within the State as per provisions of the Act. Off campus centers can be established with prior approval of the State Government.

12.5

The proposal for abolition or restructuring of existing department(s) be submitted by the head of concerned department/ institute of the University to the Registrar of the University which shall be placed before the Academic Council for consideration. On the recommendation of the Academic Council, the Registrar shall place the proposal, before the Chancellor for his consideration and approval.

12.6

Dean Faculty/Institute of the University, desirous of launching a new academic programme, shall submit to the Registrar of the University, a proposal in respect of the same programme preferably before the academic year in which the programme is to be launched.

12.7

The proposal for launching a new academic programme course shall be submitted to the Registrar in a prescribed format. The Registrar shall place the proposal, before the Academic Council for consideration.

12.8

On the recommendation of the Academic Council, the Registrar shall place the proposal, along with modifications or additions suggested by Academic Council, if any before the Chancellor for consideration and approval.

12.9

The Registrar shall convey the decision to the constituent unit, which had initiated the proposal.

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